



QUANTYX GLOBAL MED-LEGAL SOLUTIONS PRIVATE LIMITED

CIN: U82990AP2026PTC124561

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BUSINESS ASSOCIATE AGREEMENT (BAA)

HIPAA Compliance for Medical Records Processing Services

This Business Associate Agreement ("Agreement") is entered into as of _____
("Effective Date") by and between:

Quantyx Global Med-Legal Solutions, Pvt. Ltd. ("Business Associate"), a private limited company providing medical records review and processing services, and
_____ ("Covered Entity"), a law firm subject to the Health Insurance Portability and Accountability Act of 1996 ("HIPAA") and its implementing regulations.

RECITALS

WHEREAS, Covered Entity may disclose certain Protected Health Information ("PHI") to Business Associate pursuant to the terms of this Agreement and in accordance with the Health Insurance Portability and Accountability Act of 1996, Public Law 104-191 ("HIPAA"), the Health Information Technology for Economic and Clinical Health Act, Public Law 111-005 ("HITECH Act"), and regulations promulgated thereunder by the U.S. Department of Health and Human Services (the "HIPAA Rules"), including the Privacy, Security, Breach Notification, and Enforcement Rules at 45 CFR Parts 160 and 164;

WHEREAS, Business Associate will create, receive, maintain, or transmit PHI on behalf of Covered Entity in connection with the provision of medical records review, analysis, summarization, and related services;

WHEREAS, Covered Entity and Business Associate intend to protect the privacy and security of PHI and ensure compliance with applicable federal and state laws;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Definitions

The following terms used in this Agreement shall have the meanings set forth below. Terms not otherwise defined in this Agreement shall have the meanings established by the HIPAA Rules at 45 CFR Parts 160 and 164.

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D. No.: 22-20-6/ND/B-204, Nandanam Apartments, Tirupati South, Tirupati (Urban)
Chittoor – 517501, Andhra Pradesh, India.



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- **Breach** shall have the meaning given to such term under the HITECH Act and HIPAA Rules at 45 CFR § 164.402.
- **Business Associate** shall mean Quantyx Global Med-Legal Solutions, Pvt. Ltd.
- **Covered Entity** shall mean the law firm identified above.
- **Designated Record Set** shall have the meaning given to such term at 45 CFR § 164.501.
- **Electronic Protected Health Information (ePHI)** shall have the meaning given to such term at 45 CFR § 160.103.
- **Individual** shall have the meaning given to such term at 45 CFR § 160.103 and shall include a person who qualifies as a personal representative in accordance with 45 CFR § 164.502(g).
- **Privacy Rule** shall mean the Standards for Privacy of Individually Identifiable Health Information at 45 CFR Parts 160 and 164, Subparts A and E.
- **Protected Health Information (PHI)** shall have the meaning given to such term at 45 CFR § 160.103, limited to the information created, received, maintained, or transmitted by Business Associate on behalf of Covered Entity.
- **Required by Law** shall have the meaning given to such term at 45 CFR § 164.103.
- **Secretary** shall mean the Secretary of the United States Department of Health and Human Services or his/her designee.
- **Security Incident** shall have the meaning given to such term at 45 CFR § 164.304.
- **Security Rule** shall mean the Security Standards for the Protection of Electronic Protected Health Information at 45 CFR Parts 160 and 164, Subparts A and C.
- **Subcontractor** shall have the meaning given to such term at 45 CFR § 160.103.

2. Obligations and Activities of Business Associate

2.1 Permitted Uses and Disclosures of PHI

Business Associate may use or disclose PHI only to perform functions, activities, or services for, or on behalf of, Covered Entity as specified in any underlying service agreement, provided that such use or disclosure would not violate the Privacy Rule if done by Covered Entity. Business Associate shall not use or disclose PHI in any manner that would constitute a violation of the Privacy Rule if used or disclosed by Covered Entity, except as otherwise permitted by this Agreement or Required by Law.

2.2 Specific Use and Disclosure Provisions

- **Management and Administration:** Business Associate may use PHI for the proper management and administration of Business Associate or to carry out the legal responsibilities of Business Associate, provided the use or disclosure is Required by Law, or Business Associate obtains reasonable assurances from the person to whom the

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information is disclosed that it will be held confidentially and used or further disclosed only as Required by Law or for the purposes for which it was disclosed to such person, and the person notifies Business Associate of any instances of which it is aware in which the confidentiality of the information has been breached.

- **Data Aggregation:** Business Associate may use PHI to provide Data Aggregation services to Covered Entity as permitted by 45 CFR § 164.504(e)(2)(i)(B).
- **De-identification:** Business Associate may de-identify any and all PHI created or received by Business Associate, provided that the de-identification conforms to the requirements of 45 CFR § 164.514(a)-(c).

2.3 Prohibited Uses and Disclosures

- **Sale of PHI:** Business Associate shall not directly or indirectly receive remuneration in exchange for PHI, except as permitted by 45 CFR § 164.502(a)(5)(ii)(B)(2) and with Covered Entity's prior written consent.
- **Marketing:** Business Associate shall not use or disclose PHI for marketing purposes, as defined at 45 CFR § 164.501, without Covered Entity's prior written authorization.

2.4 Safeguards

Business Associate shall use appropriate administrative, physical, and technical safeguards, and comply with the Security Rule with respect to ePHI, to prevent use or disclosure of PHI other than as provided for by this Agreement. Business Associate shall implement the following minimum safeguards:

- Administrative safeguards including security management processes, workforce security protocols, information access management, security awareness and training, security incident procedures, contingency planning, and business associate contracts and other arrangements
- Physical safeguards including facility access controls, workstation use and security policies, and device and media controls
- Technical safeguards including access controls, audit controls, integrity controls, person or entity authentication, and transmission security

2.5 Reporting of Improper Use or Disclosure

Business Associate shall report to Covered Entity any use or disclosure of PHI not provided for by this Agreement, including any Security Incident or Breach of Unsecured PHI, of which it becomes aware. Such report shall be made without unreasonable delay and in no case later than ten (10) calendar days after discovery of the use, disclosure, Security Incident, or Breach. The report shall include:

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- The identification of each Individual whose Unsecured PHI has been, or is reasonably believed to have been, accessed, acquired, used, or disclosed
- A brief description of what happened, including the date of the Breach and the date of discovery
- A description of the types of Unsecured PHI involved
- A description of the investigation into the Breach, mitigation of harm, and protection against further Breaches
- Contact information for the person or office from whom additional information may be obtained

2.6 Breach Notification and Mitigation

In the event of a Breach of Unsecured PHI, Business Associate shall, in addition to the reporting requirements in Section 2.5:

- Take prompt corrective action to cure any deficiencies and mitigate, to the extent practicable, any harmful effect known to Business Associate of such use or disclosure
- Cooperate with Covered Entity in meeting Covered Entity's obligations under the Breach Notification Rule, including providing necessary information and assistance
- If requested by Covered Entity, provide notification to affected Individuals on Covered Entity's behalf, at Business Associate's expense
- Document all Breaches and related mitigation efforts

2.7 Subcontractors and Agents

Business Associate shall ensure that any Subcontractor or agent to whom it provides PHI received from, or created or received by Business Associate on behalf of, Covered Entity agrees in writing to the same restrictions and conditions that apply to Business Associate with respect to such information, including implementing reasonable and appropriate safeguards to protect the information. Business Associate shall obtain satisfactory assurances from any Subcontractor that the Subcontractor will appropriately safeguard PHI.

2.8 Access to PHI

Business Associate shall provide access, at the request of Covered Entity, and in the time and manner designated by Covered Entity, to PHI in a Designated Record Set to Covered Entity or, as directed by Covered Entity, to an Individual in order to meet the requirements under 45 CFR § 164.524. If Business Associate maintains an electronic health record on behalf of Covered Entity, Business Associate shall provide such access in electronic format to enable Covered Entity to fulfil its obligations under the HITECH Act.

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2.9 Amendment of PHI

Business Associate shall make any amendments to PHI in a Designated Record Set that Covered Entity directs or agrees to pursuant to 45 CFR § 164.526 at the request of Covered Entity or an Individual, and in the time and manner designated by Covered Entity.

2.10 Accounting of Disclosures

Business Associate shall document such disclosures of PHI and information related to such disclosures as would be required for Covered Entity to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 CFR § 164.528. Business Associate shall provide to Covered Entity or an Individual, in the time and manner designated by Covered Entity, information collected in accordance with this Section to permit Covered Entity to respond to a request by an Individual for an accounting of disclosures of PHI in accordance with 45 CFR § 164.528.

2.11 Books and Records

Business Associate shall make its internal practices, books, and records relating to the use and disclosure of PHI received from, or created or received by Business Associate on behalf of, Covered Entity available to the Secretary for purposes of determining compliance with the HIPAA Rules. Business Associate shall provide Covered Entity with copies of all documentation requested in connection with any audit, investigation, or compliance review by the Secretary within ten (10) business days of such request.

2.12 Minimum Necessary

Business Associate shall make reasonable efforts to limit PHI to the minimum necessary to accomplish the intended purpose of the use, disclosure, or request, in accordance with 45 CFR § 164.502(b) and 45 CFR § 164.514(d).

3. Obligations of Covered Entity

- **Notice of Privacy Practices:** Covered Entity shall provide Business Associate with a copy of the notice of privacy practices that Covered Entity produces in accordance with 45 CFR § 164.520, as well as any changes to such notice.
- **Permission to Use or Disclose:** Covered Entity shall not request Business Associate to use or disclose PHI in any manner that would not be permissible under the Privacy Rule if done by Covered Entity.
- **Changes in Permissions:** Covered Entity shall notify Business Associate of any restriction to the use or disclosure of PHI that Covered Entity has agreed to in accordance with 45 CFR § 164.522, or any revocation or changes to an Individual's

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permission to use or disclose PHI, to the extent that such restriction, revocation, or change may affect Business Associate's use or disclosure of PHI.

4. Term and Termination

4.1 Term

This Agreement shall be effective as of the Effective Date and shall terminate when all of the PHI provided by Covered Entity to Business Associate, or created or received by Business Associate on behalf of Covered Entity, is destroyed or returned to Covered Entity, or, if it is infeasible to return or destroy PHI, protections are extended to such information, in accordance with the termination provisions in this Section.

4.2 Termination for Cause

Upon Covered Entity's knowledge of a material breach by Business Associate, Covered Entity shall either:

- Provide an opportunity for Business Associate to cure the breach or end the violation and terminate this Agreement and any related agreements if Business Associate does not cure the breach or end the violation within the time specified by Covered Entity; or
- Immediately terminate this Agreement and any related agreements if Business Associate has breached a material term of this Agreement and cure is not possible; or
- If neither termination nor cure are feasible, Covered Entity shall report the violation to the Secretary.

4.3 Effect of Termination

Upon termination of this Agreement for any reason, Business Associate shall:

- Return or destroy all PHI received from Covered Entity, or created or received by Business Associate on behalf of Covered Entity, that Business Associate still maintains in any form. Business Associate shall retain no copies of the PHI.
- If return or destruction is not feasible, Business Associate shall extend the protections of this Agreement to such PHI and limit further uses and disclosures of such PHI to those purposes that make the return or destruction infeasible, for so long as Business Associate maintains such PHI. Business Associate shall provide written notification to Covered Entity detailing the reasons why return or destruction is infeasible.
- Ensure that any Subcontractors or agents in possession of PHI agree to return or destroy all PHI or, if infeasible, extend protections in accordance with the requirements above.

5. Indemnification

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Business Associate agrees to indemnify, defend, and hold harmless Covered Entity from and against any and all claims, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from or relating to: (a) any breach by Business Associate of its obligations under this Agreement; (b) any negligent or wrongful act or omission by Business Associate, its employees, agents, or Subcontractors in connection with the performance of services involving PHI; or (c) any violation by Business Associate of the HIPAA Rules or other applicable privacy or security laws.

6. Amendment

The Parties agree to take such action as is necessary to amend this Agreement from time to time as is necessary for Covered Entity to comply with the requirements of the HIPAA Rules and any other applicable law. Upon either Party's request, the other Party agrees to negotiate in good faith the terms of an amendment to this Agreement embodying written assurances consistent with the standards and requirements of the HIPAA Rules or other applicable law. Business Associate may not unilaterally amend this Agreement.

7. Survival

The respective rights and obligations of Business Associate under Sections 2.4 (Safeguards), 2.5 (Reporting), 2.6 (Breach Notification and Mitigation), 2.11 (Books and Records), 4.3 (Effect of Termination), 5 (Indemnification), and 9 (Miscellaneous Provisions) of this Agreement shall survive the termination of this Agreement.

8. Interpretation

Any ambiguity in this Agreement shall be resolved in Favor of a meaning that permits Covered Entity to comply with the HIPAA Rules. The Parties agree that any provision of this Agreement that differs from those mandated by the HIPAA Rules, but is nonetheless permitted by the HIPAA Rules, is a negotiated term.

9. Miscellaneous Provisions

9.1 Regulatory References

A reference in this Agreement to a section in the HIPAA Rules means the section as in effect or as amended, and for which compliance is required.

9.2 No Third-Party Beneficiaries

Nothing express or implied in this Agreement is intended to confer, nor shall anything herein confer, upon any person other than the Parties and their respective successors or assigns, any rights, remedies, obligations, or liabilities whatsoever.

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9.3 Entire Agreement

This Agreement, together with any underlying service agreement between the Parties, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, and communications, whether written or oral, relating to such subject matter.

9.4 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid or unenforceable provision shall be reformed to the extent necessary to make it valid and enforceable while preserving the Parties' intent.

9.5 Assignment

Business Associate may not assign this Agreement without the prior written consent of Covered Entity. Any attempted assignment in violation of this provision shall be void.

9.6 Notices

All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by confirmed email or facsimile, or three (3) business days after being sent by certified or registered mail, return receipt requested, to the addresses set forth in Section 10.

9.7 Relationship of the Parties

Nothing in this Agreement shall be construed as creating an agency, partnership, joint venture, employment, or fiduciary relationship between the Parties. Each Party is an independent contractor.

9.8 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures shall have the same force and effect as original signatures.

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10. Contact Information

Business Associate:

Quantyx Global Med-Legal Solutions, Pvt. Ltd.

Privacy Officer: S. Subba Raju

Email: support@quantyxg.com

Phone: +91-70751-84488

Covered Entity:

Law Firm Name: _____

Privacy Officer: _____

Address: _____

Email: _____

Phone: _____

IN WITNESS WHEREOF, the Parties have executed this Business Associate Agreement as of the Effective Date first written above.

BUSINESS ASSOCIATE:

QUANTYX GLOBAL MED-LEGAL SOLUTIONS, PVT. LTD.

Contact Person Name: _____

Title: _____

Date: _____

COVERED ENTITY:

Law Firm Name: _____

Contact Person Name: _____

Title: _____

Date: _____

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